OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Shoalhaven's 'Scholarship Place' at the Combat Antisemitism Movement summit

Sent 1 November 2026 · To Shoalhaven City Council · Response requested by 22 November 2026

To: Mr Andrew Constance, Chief Executive Officer, Shoalhaven City Council

Copied to: Mayor White; all councillors

From: Stephen Prothero, Eye on Shoalhaven Council

Date: 1 November 2026

Subject: CL26.299, the "Scholarship Place" for the Combat Antisemitism Movement summit: the word, the Code of Conduct, and the cost to ratepayers

This letter has been copied to all consultative bodies, the two members of Parliament, the union and media.

STATUS OF THIS LETTER

This is a public open letter to the Chief Executive Officer. It is published by Eye on Shoalhaven Council as a matter of public interest journalism.

It is not a complaint. It is not a complaint under Council's Complaint Handling Policy, and it is not to be registered, assessed or managed as one.

It is not a Code of Conduct complaint. It does not allege a breach of the Code of Conduct by any person, and it is not to be referred to the Complaints Coordinator, a conduct reviewer or the Office of Local Government.

It is not an access application. It is not an application under the Government Information (Public Access) Act 2009 (NSW), formal or informal, and no statutory time limit is started by it.

It is not a request for service. It does not ask Council to take action, to make a decision, or to review a decision.

It is a set of questions put to a public official in the same way a journalist puts questions to the head of an organisation. The Chief Executive may answer all, some or none of the questions, and may do so in whatever form and at whatever time he chooses. Some questions can be answered in a line and others may need work. If the Chief Executive intends to comment on any question, a short reply to this email saying so is all that is needed.

Replies will be published in full. If no reply is received, that will be recorded as it stands.

Bottom line. In my opinion, a free "Scholarship Place" at a lobby group's summit is a benefit with a flattering name, the Code of Conduct points away from accepting it, and paying to send councillors instead is poor value for ratepayers.

Three points

• The word. A scholarship is an award to a student. A free place at an advocacy organisation's conference, offered to a council, is a benefit, and Council's Code treats benefits worth more than $100 as something a councillor must not accept.
• The Code. Councillors must not seek benefits (6.5(b)), must avoid appearing to be courted (6.3) and must not accept anything that could be seen as likely to influence them (6.5(c)). The official-duties exclusion may cover the place. It does not clearly cover travel, accommodation or dinners.
• The cost. If Council pays, registration alone for all 13 councillors is $7,787. The summit's outputs, an action plan and a network, do not need a three-day trip to obtain.

Mr Constance, Mayor and councillors,

Item CL26.299 on the 27 October agenda was deferred to 24 November. The summit starts on 25 November. The motion says "Council has applied for a Scholarship Place to attend the Summit" and that "the cost of the Summit is $599 plus accommodation costs if unsuccessful."

I have read the motion, Council's Code of Conduct (POL24/134), and the Local Government Act 1993.

I set out my views below, then my questions.

1. Opinion: the word "scholarship"
In ordinary use a scholarship is money or a place awarded to a person to study, usually for merit or need. It carries a sense of achievement and of educational purpose. It does not suggest a gift from an interested party.

What Council has applied for is a free place at a conference run by the Combat Antisemitism Movement, an advocacy organisation, for a government body with a rate-funded budget.

Councillors are students, and it has not said it cannot afford $599.

Whatever the organiser calls it, it is a benefit offered to Council or to the councillors who attend.

The Code is written to catch exactly that, however it is described.

Calling it a scholarship makes a benefit sound like an education grant, and makes a request for a benefit sound like an application for an honour.
I have not seen the organiser's terms. If places are awarded by application, which the word "applied" suggests, then the organiser chooses which councils receive a benefit.

That is the opposite of a neutral arrangement, and Council should publish the terms.

2. Opinion: the Code of Conduct points away from this
I do not allege that any councillor has breached the Code.

As far as I know nothing has been accepted. My point is that the Code, read plainly, points away from the course the motion describes.

• Clause 6.5(b): a councillor must not "seek gifts or benefits of any kind". An application for a free place is a request for a benefit. The exclusion in 6.2(e) for attendance at a work-related event "for the purposes of performing their official duties" may cover the place itself. It was not written for a request for travel, accommodation or hospitality.
• Clause 6.5(c): a councillor must not accept a benefit "that may create a sense of obligation on your part, or may be perceived to be intended or likely to influence you in carrying out your public duty". The organiser is an advocacy group that wants councils to adopt a declaration and, in its other summits, the IHRA definition of antisemitism. That is a position on policy, and Council may be asked to vote on it.
• Clauses 6.5(d), 6.8 and 6.9: nothing of more than "token value" may be accepted, and token value is $100 or less in total from one source in 12 months. The registration is $599. Clause 6.10 lists "free or discounted travel" as above that line.
• Clause 6.2(f) in Council's own Code excuses only meals "of token value" given in conjunction with official duties.
A welcome reception and a gala dinner paid for by the organiser may not fit.
• Clause 6.3: councillors "must avoid situations that would give rise to the appearance" that a body is trying to secure favourable treatment. The appearance here is not helped by timing. Days ago, the organisers of the Wall of Tears exhibition say Council cancelled their exhibition. Council has not explained that decision publicly. Hospitality from an advocacy group on the other side of that debate is the kind of situation clause 6.3 asks councillors to avoid.
• Clause 6.6: any benefit has to be disclosed and recorded in the gift register. In my reading, disclosure is necessary but may not be enough,
because clause 6.5(d) still says a benefit of more than token value must not be accepted unless it cannot reasonably be refused or returned. A booked room can be declined. That is my reading, not a ruling.
Wollongong faced the same question last year. Region Illawarra reported in July 2025 that a councillor there raised the "gift or benefit" concern about the 2025 summit, that the general manager said it was not an issue if costs were declared, and that the councillor attending offered to have Council cover the costs. I found no conduct finding. Notice what that offer did.

It removed the gift problem by creating the cost problem, which is the next section.
3. Opinion: the organiser
The summit is convened by the Combat Antisemitism Movement (CAM). I have no quarrel

with the aim of keeping Jewish Australians safe. My objections are to this organiser and this process, and I set out what the record shows.

• CAM is an advocacy organisation. Its own biographies say its chief executive served in the Israel Defense Forces and ran the IDF Spokesperson's Unit New Media Division, and that its advisory board chair is Natan Sharansky, a former Israeli deputy prime minister.
• CAM does not disclose its funders. Critics, including the Jewish Council of Australia and the investigative reporters Lee Fang and Jack Poulson, say it is part of a pro-Israel advocacy network with links to Israeli state bodies. CAM has denied receiving Israeli government money. It is not established that the Israeli government or military directs or funds CAM, and former service is not a current link.
• CAM promotes the IHRA definition of antisemitism. After its 2025 Gold Coast summit, Bayside Council adopted it, according to CAM's own news item. Supporters call the definition a useful guide. Critics say its examples can catch legitimate criticism of Israel's government. A council deciding that question should do so on its own advice, not at an event run by the body promoting it.
• CAM's site says delegates "will become a signatory" to the "Sydney Declaration to Stamp Out Community Division and Hate".
4. Opinion: what Australians think, and what I do not know
Pew's spring 2026 survey, as reported by The Jewish Independent, found

79 per cent of Australians hold an unfavourable view of Israel, up from 74 per cent the year before.
I have not checked Pew's own release. The Scanlon Foundation's 2025 survey kept its social cohesion index at 78, and found
35 per cent hold negative attitudes toward Muslims.
Negative attitudes toward Jewish people rose after the Gaza war began, and only a small minority hold them.
I know of no reliable Australian polling on "Zionism" as such. The word means different things to different people, from a movement for Jewish self-determination to a label used as an insult, and polling on a loaded word would tell us little. What polling exists is about views of Israel's government and conduct. That is not the same as hostility to Jewish people, and it should not be treated as if it were.

Public opinion does not decide a Code question.
It does bear on appearance.
A council seen to accept hospitality from one side of the most divisive international issue of the decade, while turning down a memorial exhibition, will be read by many residents as taking sides.

The fear felt by Jewish Australians is real. So is the fear felt by Palestinian and Muslim Australians, and Council has no business appearing to value one over the other.

5. Opinion: sending councillors on Council money is a waste
If Council avoids the gift problem by paying, ratepayers fund the trip. I think that is a poor use of scarce money, on the figures in the motion alone.

• Registration is $599 a head. I do not know how many would go, and the motion does not say.
• The summit runs for three days, 25 to 27 November, in Sydney's eastern suburbs. Add accommodation, meals, a long drive each way, and councillors' and staff time to organise it. None of that is costed in the motion.
• The motion itself says the summit is "backed by the Commonwealth and NSW Governments" and refers to a Royal Commission. Antisemitism policy is being set by those governments, not by Shoalhaven. The summit's own promised outputs, "an action plan for their own council" and "a national network of counterparts", can be requested without anyone travelling. Waverley, a co-host, has a published model strategy for councils.
• Section 8A(1)(b) of the Local Government Act says councils "should carry out functions in a way that provides the best possible value for residents and ratepayers".
The motion has no cost estimate,
no stated objective,
no list of who would go and
no commitment to report back.
On that test, there is nothing to compare.
Every dollar and every councillor-day has another use. A motion that cannot say what the money buys has not met the test of best possible value.

6. Opinion: process
The motion says Council "has applied". I have found no resolution authorising the application.

CAM's own page said registrations closed on 30 October, so the application was lodged before then, and before councillors voted. Under section 335 of the Act the Chief Executive conducts the day-to-day management of Council and implements its lawful decisions.

I would like to know who lodged the application and on what authority. I do not suggest anything improper. The question is a basic one about who decides.

A vote on 24 November, the day before the summit, leaves no real room to reconsider. If Council wants a considered decision, it needs the facts before that meeting.

1. Questions
2. Who lodged the application for the Scholarship Place, when, and under what authority? Was there a resolution or delegation?

1. What are the terms of the offer? Who is providing it, and what does it cover: registration, accommodation, travel, meals, the welcome reception and the gala

dinner? Are places awarded competitively, and have other councils been refused?

1. Has Council been told the outcome of the application?

1. Has Council obtained advice, internal, external or from the Office of Local Government, on how clauses 6.2, 6.3, 6.5, 6.6 and 6.8 to 6.10 of the Code apply to a scholarship place, and to travel and accommodation offered with it? Will the advice be published?

1. Will any benefit be recorded in the gift register, and who will decide whether it is a gift or benefit?

1. Has Council been given the text of the Sydney Declaration? Does attending commit Council, or the councillors who attend, to sign it, and has Council taken advice on what that would mean?

1. What is the estimated total cost of each option: scholarship place; Council-funded registration; accommodation; travel; meals; staff time? For how many councillors? From which budget, and under which provision of the councillor expenses and facilities policy?

1. What does Council expect to gain, and how will attendees report back publicly? Which comparable conferences has Council funded in the last 12 months, and what were the outcomes?

1. Will the Chief Executive provide councillors with a report on the above before the 24 November meeting, and publish it?

Yours sincerely,

Stephen Prothero

Independent community journalist | Publisher, Eye on Shoalhaven Council

M | E | Substack: steveprothero.substack.com

Sources

• Shoalhaven City Council agenda, 27 October 2026, CL26.299 (p.164); minutes, deferral to 24 November 2026

• Shoalhaven City Council, Code of Conduct (POL24/134), Part 6 Personal Benefit, clauses 6.2 to 6.10; Local Government Act 1993 (NSW) ss 8A, 335, 440

• CAM Australia summit site, australia.combatantisemitism.org (Sydney Declaration; registrations closed 30 October)

• Region Illawarra, 30 July 2025, Wollongong councillor and the 2025 summit

• Combat Antisemitism Movement news item: Bayside Council adopts IHRA definition after 2025 Australian Mayors Summit

• Pew Research Centre survey via The Jewish Independent; Scanlon Foundation Mapping Social Cohesion 2025
